THE MASTERMIND COACHING CLASSES

CBSE / RBSE • NURSERY – CLASS XII • JAIPUR

Road No. 5, VKIA, Jaipur — 9887258679

ANSWER KEY & MARKING SCHEME SET 1

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(c)** decide disputes fairly according to law	It is the organ that delivers justice
2	**(a)** Supreme Court	At the top of the hierarchy
3	**(d)** Kapila Hingorani	It freed undertrials in Bihar
4	**(a)** general rules made by the government that all must follow	Breaking them has consequences
5	**(d)** New Delhi	The capital city
6	**(d)** sexual harassment at the workplace	A PIL case
7	**(a)** pay a fine or face punishment	Consequences follow
8	**(d)** 26 January 1950	The day the Constitution came into force
9	**(d)** original jurisdiction	Direct hearing
10	**(b)** labelled certain communities as criminals by birth	It was an unjust colonial law

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Decides disputes fairly (1); Protects rights and upholds the Constitution (1).	1+1
12	Public Interest Litigation (1); Allows any person to approach the court for public cause (1).	1+1
13	Courts below the High Court (1); District and sessions courts (1).	1+1
14	Fair treatment of all under law (1); Equality before the law (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Provide general rules for all (1); Define consequences of breaking them (1); Courts apply them fairly (1).	1+1+1
16	Original (1); Appellate (1); Advisory (1).	1+1+1
17	Hears appeals (1); Superintendence under Article 227 (1); Transfers cases (1).	1+1+1
	OR: They were discriminatory (1); They curbed freedoms (1); They conflicted with the Constitution (1).	1+1+1
18	Article 32 for Supreme Court (1); Article 226 for High Courts (1); To enforce Fundamental Rights (1).	1+1+1
	OR: Closest to people (1); Hear most cases (1); Provide first-level justice (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Fair decisions (1); Protects rights (1); Free from pressure (1); Checks other organs (1); Rule of law (1).	1+1+1+1+1
	OR: Number (1); Writs (1); Appeals (1); Supervision (1); Appointments (1).	1+1+1+1+1
20	Criminal Tribes Act (1); Vernacular Press Act (1); Jim Crow (1); Apartheid (1); Reform (1).	1+1+1+1+1
	OR: District court (1); Sessions court (1); Tribunals (1); NGT (1); Importance (1).	1+1+1+1+1

Mistakes to avoid:

- Saying that courts make laws; the legislature makes laws, the executive implements them and the judiciary interprets them and settles disputes.
- Mixing Article 32 (Supreme Court) with Article 226 (High Courts) for writs.
- Writing the retirement ages the other way round; Supreme Court judges retire at 65 and High Court judges at 62.
- Confusing substantive justice (fairness of the outcome) with procedural justice (fairness of the process, each side is heard).
- Dating the Supreme Court to 1947; it came into existence on 26 January 1950.
- Confusing Lok Adalat (settlement by compromise) with mediation (a neutral third party helps the parties agree) and with a court judgement.

Evaluator's note: Award step marks as shown; accept any correct alternative method. In internal-choice questions, evaluate only the option attempted. Deduct up to ½ mark for missing units or figures where required.

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ANSWER KEY & MARKING SCHEME SET 2

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(a)** Yato dharmastato jayah	Where there is dharma, there is victory
2	**(a)** advisory jurisdiction	Article 143
3	**(a)** the freedom of the Indian-language press	A colonial law later repealed
4	**(b)** President of India	On the advice of the collegium and government
5	**(a)** all courts in India	Article 141
6	**(b)** the United States	They segregated Black Americans
7	**(b)** 65 years	Fixed by the Constitution
8	**(a)** High Courts	Some serve more than one state
9	**(c)** South Africa	Repealed in the early 1990s
10	**(b)** 62 years	Fixed by the Constitution

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Lawyer who filed the first reported PIL (1); It led to the release of undertrials (1).	1+1
12	Specialised bodies for certain disputes (1); e.g. National Green Tribunal (1).	1+1
13	Substantive: fairness of the outcome (1); Procedural: fairness of the process (1).	1+1
14	Hearing certain disputes directly (1); Such as Centre-state disputes (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Laws can be unjust (1); They divide people by race (1); They must be changed through struggle (1).	1+1+1
16	Many poor could not approach courts (1); Allowed others to file on their behalf (1); Issues of public concern could be heard (1).	1+1+1
17	NGT for environment (1); Administrative Tribunal for government employees (1); Tax tribunals for tax (1).	1+1+1
	OR: Supreme Court at the top (1); High Courts in states (1); Subordinate courts below (1).	1+1+1
18	A PIL of 1997 (1); Concerned sexual harassment at work (1); Court issued guidelines (1).	1+1+1
	OR: Quicker (1); Cheaper (1); Keeps relationships friendly (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Meaning of each (1); Example of fair outcome (1); Example of fair process (1); Both needed (1); Role of courts (1).	1+1+1+1+1
	OR: Mediation (1); Arbitration (1); Lok Adalat (1); Gram Nyayalaya (1); Benefits (1).	1+1+1+1+1
20	Position (1); Strength (1); Original jurisdiction (1); Appellate and advisory (1); Binding decisions (1).	1+1+1+1+1
	OR: Supreme Court (1); High Court (1); District (1); Appeals (1); Writs (1).	1+1+1+1+1

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ANSWER KEY & MARKING SCHEME SET 3

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(d)** subordinate courts	District and sessions courts
2	**(c)** the fairness of the final outcome	What the decision is
3	**(d)** Article 32	To enforce Fundamental Rights
4	**(b)** environment	A specialised body
5	**(a)** a fair process in which each side is heard	How the decision is reached
6	**(b)** Article 226	High Courts' writ power
7	**(d)** a people's court that settles disputes by compromise	Informal and quick
8	**(d)** a single hierarchy of courts	Integrated system
9	**(a)** Public Interest Litigation	Cases for public causes
10	**(c)** mediation	The mediator does not impose a decision

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Dispute decided by a neutral arbitrator (1); Decision is binding (1).	1+1
12	A petition to enforce Fundamental Rights (1); Filed under Article 32 or 226 (1).	1+1
13	Court gives its opinion to the President (1); On a question of law or fact (1).	1+1
14	A people's court (1); Settles disputes through compromise (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Established in 1950 (1); Located in New Delhi (1); Motto Yato dharmastato jayah (1).	1+1+1
16	141: Supreme Court's law binds all courts (1); 142: Court may pass any order for complete justice (1); Ensures uniformity and justice (1).	1+1+1
17	Village-level courts (1); Provide speedy local justice (1); Set up under an Act of 2008 (1).	1+1+1
	OR: Appointed by the President (1); Must be qualified under Article 124 (1); Retire at 65 (1).	1+1+1
18	One for each state or more (1); Headed by a Chief Justice (1); Hear appeals and writs (1).	1+1+1
	OR: Civil: private disputes (1); Criminal: offences against society (1); Different punishments (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Appointment (1); Qualifications (1); Retirement age (1); Security of tenure (1); Independence (1).	1+1+1+1+1
	OR: Writs (1); Article 32 (1); Article 226 (1); Examples (1); Role of citizens (1).	1+1+1+1+1
20	Meaning (1); Hingorani case (1); Vishaka case (1); Access to justice (1); Limits (1).	1+1+1+1+1
	OR: FIR (1); Investigation (1); Trial (1); Judgment (1); Appeal (1).	1+1+1+1+1

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